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| <b>9:01<br/>2</b>                 | 26CV486244 | <i>Sofi Bank, National Association<br/>v.<br/>Michael Chang, et al.</i> | <p><b>Order on Motion by Defense counsel Jerry Wang of Huron Legal Group, P.C. to be Relieved as Counsel for Defendant Michael Chang</b></p> <p>Defense counsel Jerry Wang of Huron Legal Group, P.C. moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Defendant Michael Chang.</p> <p>As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby <b>GRANTED</b>.</p> <p>The Court will sign and file the Proposed Order that has already been prepared by attorney Wang and filed with this Motion.</p> <p><b>SO ORDERED.</b></p> |
| <b>9:01<br/>3</b>                 |            |                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>9:01<br/>4</b>                 |            |                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>9:01<br/>5</b>                 |            |                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|                                   |            |                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>9:00<br/><a href="#">1</a></b> | 25CV474504 | <i>Adedayo Abioye<br/>v.<br/>Abraham Chapa, et al.</i>                  | <p><b>Order on Plaintiff's Motion for Judgment on the Pleadings</b></p> <p>See Line 1 below for complete tentative ruling.</p> <p>After the hearing, the Court will prepare and file the formal Order.</p>                                                                                                                                                                                                                                                                                                                                                                                                                  |

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| <b>9:00</b><br><a href="#">2</a> | 25CV480278 | <i>Richard Ledesma, et al.</i><br><i>v.</i><br><i>Kelly Primeau, et al.</i>                     | <b>Order on Cross-Defendant Ledesma's Demurrer to the First Amended Cross-Complaint</b><br><br>Under California Rule of Court 3.1322(b), the Court <b>CONTINUES</b> this Demurrer to December 4, 2026 at 9:00 AM in Department 16, where it will be heard at the same time as Cross-Defendant Ledesma's Motion to Strike Portions of the First Amended Cross-Compliant, which also is hereby <b>ADVANCED</b> from its currently-set hearing date of March 24, 2027, to December 4, 2026 at 9:00 AM in Department 16. As the concurrently-filed Demurrer and Motion to Strike are required to be heard at the same time, they will both be heard on December 4, 2026 at 9:00 AM in Department 16. C.R.C. 3.1322(b).)<br><br><b>SO ORDERED.</b> |
| <b>9:00</b><br><a href="#">3</a> | 25CV481631 | <i>Rina Panigrahy, et al.</i><br><i>v.</i><br><i>Archbishop Mitty High School, et al.</i>       | <b>Order on Defendant City of San Jose's Demurrer to Plaintiff's Complaint</b><br><br>See Line 3 below for complete tentative ruling.<br><br>After the hearing, the Court will prepare and file the formal Order.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>9:00</b><br><a href="#">4</a> | 22CV407932 | <i>J.C.</i><br><i>v.</i><br><i>Watchtower Bible and Tract Society of New York, Inc., et al.</i> | <b>Order on Defendant Watchtower's Motion for Summary Judgment against Plaintiff J.C.</b><br><br>See Line 4 below for complete tentative ruling.<br><br>After the hearing, the Court will prepare and file the formal Order.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

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| <b>9:00</b><br><a href="#">5</a> | 25CV472081 | <i>Shan Allen Laliberte, et al.</i><br><i>v.</i><br><i>F.S. Trucking Company, et al.</i> | <b>Order on Plaintiff Laliberte's Motion to Compel Defendant F.S. Trucking Company, Inc., to Respond to Plaintiff's Requests for Production of Documents, Set One, and for Sanctions</b><br><br>At the request of the moving party, this Motion is <b>OFF CALENDAR</b> .<br><br><b>SO ORDERED.</b> |
| <b>9:00</b><br><a href="#">6</a> | 25CV462049 | <i>Michael Ramos-Mauro, et al.</i><br><i>v.</i><br><i>General Motors LLC, et al.</i>     | <b>Order on Plaintiffs' Motion for Attorneys' Fees</b><br><br>See Line 6 below for complete tentative ruling.<br><br>After the hearing, the Court will prepare and file the formal Order.                                                                                                          |
| <b>9:00</b><br><a href="#">7</a> | 25CV467528 | <i>Erdan Liu, et al.</i><br><i>v.</i><br><i>El Patron Demolition, Inc.</i>               | <b>Order on Petitioners' Motion to Remove Mechanics Lien</b><br><br>See Line 7 below for complete tentative ruling.<br><br>After the hearing, the Court will prepare and file the formal Order.                                                                                                    |
| <b>9:00</b><br><a href="#">8</a> | 25CV480145 | <i>Theo Van Buren</i><br><i>v.</i><br><i>Bill Holdings Inc., et al.</i>                  | <b>Order on Defendants' Motion to Set Aside Entries of Default and For Leave to File a Demurrer to Plaintiff's Complaint</b><br><br>See Line 8 below for complete tentative ruling.<br><br>After the hearing, the Court will prepare and file the formal Order.                                    |

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| <b>9:00</b><br><a href="#"><u>9</u></a>  |  |  |  |
| <b>9:00</b><br><a href="#"><u>10</u></a> |  |  |  |
| <b>9:00</b><br><a href="#"><u>11</u></a> |  |  |  |
| <b>9:00</b><br><a href="#"><u>12</u></a> |  |  |  |
| <b>9:00</b><br><a href="#"><u>13</u></a> |  |  |  |
| <b>9:00</b><br><a href="#"><u>14</u></a> |  |  |  |
| <b>9:00</b><br><a href="#"><u>15</u></a> |  |  |  |

**Line 1**

Case Name: *Adedayo Abioye v. Abraham Chapa, et al.*

Case No.: 25CV474504

**SUPERIOR COURT OF CALIFORNIA**

**COUNTY OF SANTA CLARA**

Plaintiff Adedayo Abioye (“Plaintiff”) moves under Code of Civil Procedure Sections 438 for Judgment on the Pleadings in favor of Plaintiff and against Defendants Abraham Chapa and Vortex Industries, LLC (“Defendant”) on the grounds that:

1. The Complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. C.C.P. § 438(c)(1)(A).
2. The Defendants’ Answer is false, improper, irrelevant and was not filed in conformation with California law. C.C.P. §§ 435, 436.

Notice of Motion (the “Motion”) at 1:22-2:13 (filed: Aug. 6, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

**I. Fact Allegations**

On June 26, 2025, Plaintiff’s vehicle was struck by Abraham Chapa while driving as an employee in a vehicle for Vortex. At the scene of the collision, Mr. Chapa admitted to being distracted by a biker and did not see Plaintiff’s vehicle. (Complaint ¶¶ 12, 13)

As a result of the collision, Plaintiff’s vehicle was a total loss and he suffered injuries to his neck, back, and head. Plaintiff also suffered emotional and mental distress. Defendants’ insurance company communicated their willingness to compensate Plaintiff for his injuries, but have not done so. (Complaint ¶¶ 15, 17)

Plaintiff initiated this action on September 9, 2025, alleging causes of action for negligence and negligent infliction of emotional distress. On July 10, 2026, the Court sustained Defendants’ demurrer to Plaintiff’s cause of action for negligent infliction of emotional distress without leave to amend.

**II. Legal Standards**

“A motion for judgment on the pleadings serves the function of a demurrer,